

Opinion of the Court

trine is undoubtedly carved into the Constitution's text by its three articles separating powers and vesting the Executive power solely in the President. See *ibid.* And the Court's prior decisions, such as *Nixon* and *Fitzgerald*, have long recognized that doctrine as mandating certain Presidential privileges and immunities, even though the Constitution contains no explicit "provision for immunity." *Post*, at 660; see Part II-B-1, *supra*. Neither the dissents nor the Government disavow any of those prior decisions. See Tr. of Oral Arg. 76-77.

The principal dissent then cites the Impeachment Judgment Clause, arguing that it "clearly contemplates that a former President may be subject to criminal prosecution." *Post*, at 661. But that Clause does not indicate whether a former President may, consistent with the separation of powers, be prosecuted for his *official* conduct in particular. See *supra*, at 632-633. And the assortment of historical sources the principal dissent cites are unhelpful for the same reason. See *post*, at 662-664. As the Court has previously noted, relevant historical evidence on the question of Presidential immunity is of a "fragmentary character." *Fitzgerald*, 457 U. S., at 752, n. 31; see also *Clinton*, 520 U. S., at 696-697; cf. *Youngstown*, 343 U. S., at 634 (Jackson, J., concurring) (noting "the poverty of really useful and unambiguous authority applicable to concrete problems of executive power"). "[T]he most compelling arguments," therefore, "arise from the Constitution's separation of powers and the Judiciary's historic understanding of that doctrine." *Fitzgerald*, 457 U. S., at 752, n. 31.

The Court's prior admonition is evident in the principal dissent's citations. Some of its cherry-picked sources do not even discuss the President in particular. See, *e. g.*, *post*, at 633 (citing 2 Debates on the Constitution 177 (J. Elliot ed. 1836); 2 J. Story, Commentaries on the Constitution of the United States § 780, at 250-251). And none of them indicate whether he may be prosecuted for his official con-